LUCIA REGINALD (NEE EDWARD)
versus
RAPHAEL REGINALD

HIGH COURT OF ZIMBABWE
TSANGA J
HARARE; 26 November, 4, 17 & 19 December 2025 & 14 January 2026

Matrimonial Trial

T Muchini, for the Plaintiff
Defendant in person

TSANGA J:

Introduction

The parties contracted a civil marriage on 18 February 2000. The plaintiff, Lucia Reginald, issued summons for divorce against the defendant, Raphael Reginald, in 2019. The plaintiff left the matrimonial home in March 2019 and, as at the pre-trial conference and the hearing of this matter, remains resolute that the marriage has irretrievably broken down.

The defendant opposed the divorce initially, stating that he still loves the plaintiff and was taken by surprise by the issuance of summons, having expected the marriage to endure for life. However, the real contest between the parties lies not in the dissolution of the marriage, but in the distribution of the matrimonial property, particularly the house known as 150 Crowborough Way, Mufakose.

There are no children of the marriage although the defendant has two children of his own from a prior relationship. The parties have already shared their movable property by consent.

Dissolution of the Marriage

The plaintiff testified that the marriage had become intolerable due to the defendant's continuous infidelity, prolonged absences from the matrimonial home over weekends, and persistent verbal abuse which left her emotionally distressed and physically affected. She

described a pattern of conduct that ultimately compelled her to leave the matrimonial home and seek a divorce.

Six years after separation, she remains firm in her decision and testified that she has no desire for reconciliation.

The defendant, while professing love for the plaintiff, did not seriously dispute that the parties have lived apart since 2019 and that there has been no restoration of marital relations.

From the evidence, it is clear that the marriage has irretrievably broken down and that there is no reasonable prospect of restoration. A decree of divorce must therefore issue.

The Matrimonial Home

The central dispute concerns the distribution of the matrimonial home at 150 Crowborough Way, Mufakose.

It is common cause that:

- The house is registered in the defendant's name.
- It originated as a core house acquired through a loan obtained by the defendant from his employer.
- The parties lived in the house as husband and wife for many years.
- At the time the plaintiff left in 2019, the structure was roofed but incomplete, lacking plastering, fittings, windows, doors, plumbing and electrical installations.
- Since the plaintiff's departure, further developments have been effected by the defendant.

Plaintiff's Contribution

The plaintiff testified that although the house was registered in the defendant's name, this was only because he was the beneficiary of the employer loan. She stated that throughout the marriage she contributed by:

- Paying for food, clothing and household necessities;
- Paying rates;
- Performing the bulk of domestic labour;

- Becoming the breadwinner after the defendant lost employment in 2015;
- Supporting the defendant financially to the extent that he successfully claimed spousal maintenance from her;
- Taking out loans to purchase bricks and materials for the construction of a perimeter wall and roof trusses.

Her evidence further established that when the defendant became unemployed, she maintained the household and even had him on her medical aid.

Defendant's Contribution

The defendant testified that he acquired the house initially as a two-roomed core house with a durawall and gate. He attributed the bulk of the construction work to funds received from:

- An inheritance of approximately US$8 500 from his parents;
- A pay-out of approximately US$6 000 upon leaving employment in 2015.

However, his evidence was internally inconsistent. At various points, he gave differing figures regarding the use of his inheritance and employment pay-out. He also conceded under cross-examination that part of the inheritance was used to purchase a motor vehicle, contradicting his claim that the entire sum was devoted to the house.

The defendant further confirmed that:

- He relied on the plaintiff for groceries and general upkeep after losing his job;
- He claimed and was awarded spousal maintenance against the plaintiff albeit insignificant;
- He was previously on the plaintiff's medical aid.

Evaluation of the Evidence

The important legal principle as emphasised in *Kassim* v *Kassim* 1989 (3) ZLR 234 (HC) by Gibson J is that under s7 of the Matrimonial Causes Act the court has power on divorce to order the division of matrimonial property notwithstanding the strict legal title of the parties. In other words, it does not matter in whose name the property is registered since

what is considered in terms of that section are the assets of the spouses as opposed to matrimonial property. See *Gonye* v *Gonye* 2009 (1) ZLR 39 (SC). The intention, as explained in *Gonye* is to have assets owned by the parties individually or jointly considered when an order is made regarding distribution of the property. In terms of the applicable law, the court is not concerned merely with who paid for what, nor with whose name appears on the title deed. The court is enjoined to consider in terms of the Matrimonial Causes Act [*Chapter 5:13*] the direct and indirect contributions, including domestic work, financial support, and the overall duration of the marriage. Indirect contributions which are not easily quantifiable in money do count as does the length of the marriage as dealt with extensively in *Mhora* v *Mhora* SC 89/20. All factors listed in the section count including the income earning capacity , the financial needs and obligations which each spouse is likely to have in the foreseeable future, their standard of living and the age and physical condition of each spouse.

This was a marriage of nearly twenty years. For a substantial portion of that period, the plaintiff contributed indirectly by maintaining the household, supporting the defendant financially when he was unemployed, and enabling the defendant to retain and improve the matrimonial home.

The defendant's contention that the plaintiff should receive nothing is untenable. It flies in the face of:

- The length of the marriage;
- The plaintiff's proven financial and non-financial contributions;
- The fact that the plaintiff maintained the defendant after he lost employment;
- The defendant's own reliance on the plaintiff, including maintenance and medical aid.

While it is accepted that the defendant effected further improvements to the property after the plaintiff left in 2019, those improvements do not extinguish the plaintiff's accrued entitlement arising from nearly two decades of marriage. However, this court also takes into account the fact that half of his inheritance from his parents contributed to the building. It does give the house an added sentimental value to the defendant. Also, the house had been acquired through a loan from defendant's employer as opposed to joint savings. The direct financial contributions, in other words, were more from the defendant and the house remains an on-going project.

Distribution of the Matrimonial Home

Taking into account:

- The duration of the marriage;
- The contributions of both parties, direct and indirect;
- The fact that the house is the only significant immovable asset;
- The improvements made after separation;

The court finds that a fair and just distribution would be to award the plaintiff a 40% share of the value of the matrimonial home as at the date of separation, with post-separation improvements to be excluded from the valuation.

Order

Accordingly, it is ordered as follows:

1. A decree of divorce is hereby granted.
2. The immovable property known as 150 Crowborough Way, Mufakose shall be valued by an independent estate valuer agreed upon by the parties, or failing agreement, appointed by the Registrar.
3. The valuation shall reflect the value of the property as at March 2019, excluding improvements effected thereafter.
4. The plaintiff, Lucia Reginald, is awarded 40% of the assessed value.
5. The defendant, Raphael Reginald, shall pay the plaintiff her share within a reasonable period to be agreed upon, being in any event not later than 12 months from the date of this order, failing which the property shall be sold and the proceeds distributed accordingly.
6. Each party shall bear their own costs.

TSANGA J:……

Muchini Attorneys, plaintiff's legal practitioners